



Stephen R. Smith
T: +1 703 456 8035
stephen.smith@cooley.com

Via EDIS

August 18, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St., SW, Room 112
Washington, DC 20436

**Re: *Certain Semiconductor Devices, Products Containing Same, and Components Thereof,*
Inv. No. 337-TA-1500**

Dear Secretary Barton:

Attached for filing on behalf of Respondents Tower Semiconductor Ltd.; Tower Partners Semiconductor, Ltd.; Tower Semiconductor Italy S.r.l.; Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC in the above-referenced investigation, please find the Agreements to be Bound by the Protective Order (Order No. 1, April 30, 2026) and First Amendment to the Protective Order (Order No. 7, June 29, 2026) for the following experts:

- Sanjay Banerjee
- Jeffrey Bokor
- David Choi
- Frank Ernst

Please contact me if you have any questions.

Respectfully Submitted,

/s/ Stephen R. Smith
Stephen R. Smith

Sanjay Banerjee
T: +1 (512) 924-4799
banerjeelab.mer.utexas.edu

Via EDIS

August 17, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St. SW, Room 112
Washington, DC 20436

Re: Inv. No. 337-TA-1500; *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*

Dear Secretary Barton:

I was retained as an expert by Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC ("Tower" or "Respondents") in the above-referenced investigation. By this letter, I acknowledge that I have read the Protective Order (Order No. 1) issued by Administrative Law Judge Cameron Elliot in this investigation on April 30, 2026 (the "Protective Order") and the First Amendment to the Protective Order (Order No. 7) issued by Chief Administrative Law Judge Clark S. Cheney on June 29, 2026 (the "First Amendment"). In accordance with the Protective Order and First Amendment, I hereby agree:

1. To be bound by the terms of the Protective Order and First Amendment;
2. Not to reveal confidential business information to anyone other than persons designated in paragraphs 3 and 18; and
3. To utilize such confidential business information solely for purposes of this investigation.

Pursuant to paragraph 4 of the Protective Order, I, the undersigned, on behalf of Respondents, acknowledge that information submitted for purposes of this Investigation may be disclosed to and used:

- i) by the Commission, its employees and Offices, and contract personnel (a) for developing or maintaining the records of this or a related proceeding, or (b) in internal investigations, audits, reviews, and evaluations relating to the programs, personnel, and operations of the Commission including under 5 U.S.C. Appendix 3; or
- ii) by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,



Sanjay Banerjee

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Sanjay Kumar Banerjee, state: My business address is

1742 Canonero Dr, Austin, TX 78746 _____;

My present employers are The University of Texas at Austin; My present occupations or
job descriptions are Cockrell Chair Professor of Electrical and Computer Engineering;

I have read in its entirety the First Protective Order Amendment Regarding the Production
and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered
in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all
HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES
ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products
Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with
the restrictions in the First Protective Order Amendment, and to be subject to the authority of the
United States International Trade Commission and/or any appropriate state or federal court in the
event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the
foregoing is true and correct.

Executed on 7/21/2026_____.

Sanjay Banerjee]

Sanjay Banerjee

[Signature]

Jeffrey Bokor
T: +1 (510) 642-4134
jbokor@berkeley.edu

Via EDIS

August 17, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St. SW, Room 112
Washington, DC 20436

Re: Inv. No. 337-TA-1500; *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*

Dear Secretary Barton:

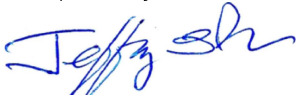
I was retained as an expert by Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC ("Tower" or "Respondents") in the above-referenced investigation. By this letter, I acknowledge that I have read the Protective Order (Order No. 1) issued by Administrative Law Judge Cameron Elliot in this investigation on April 30, 2026 (the "Protective Order") and the First Amendment to the Protective Order (Order No. 7) issued by Chief Administrative Law Judge Clark S. Cheney on June 29, 2026 (the "First Amendment"). In accordance with the Protective Order and First Amendment, I hereby agree:

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- ii) by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,



Jeffrey Bokor

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Jeffrey Bokor [print or type full name], state: My

business address is 1310 Brewster Drive, El Cerrito, CA 94305 ;

My present employers are University of California ;

My present occupations or job descriptions are Professor Emeritus ;

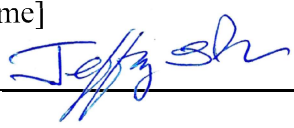
I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 24, 2026.

Jeffrey Bokor

[Printed Name]


[Signature]

David Choi
T: +1 (720) 598-8510
dchoi@rfdesignconcepts.com

Via EDIS

August 17, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St. SW, Room 112
Washington, DC 20436

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- ii) by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,



David Choi

EXHIBIT A

ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT

I, David Choi [print or type full name], state: My

business address is 2517 Lexington St., Lafayette, CO 80026

My present employers are R# Design Concepts, Ltd.;

My present occupations or job descriptions are Principal Consultant;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions ("First Protective Order Amendment") entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS' EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 20, 2020.

David Choi

[Printed Name]

David Choi

[Signature]

Frank Ernst
Dr.Frank.Ernst@gmail.com

Via EDIS

August 17, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St. SW, Room 112
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Dear Secretary Barton:

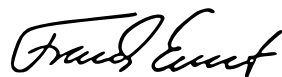
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- ii) by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,



Frank Ernst

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Frank Ernst [print or type full name], state: My

business address is 3074 Corydon Road, Cleveland, OH 44118 ;

My present employers are Case Western Reserve University ;

My present occupations or job descriptions are Professor ;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on 26-07-21.

Frank Ernst

[Printed Name]

[Signature]



CERTIFICATE OF SERVICE

I hereby certify that on August 18, 2026, copies of the foregoing were filed with and served upon the following as indicated:

The Honorable Lisa Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 112
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

The Honorable Clark S. Cheney
Chief Administrative Law Judge
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 317
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☒ Via Box
☒ Via Electronic Mail

Email: Cheney1500@usitc.gov

COUNSEL FOR COMPLAINANTS GLOBALFOUNDRIES US INC.

Clement Naples
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One Liberty Plaza
New York, NY 10006

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☐ Via EDIS
☐ Via Box
☒ Via Electronic Mail

Bert C. Reiser
Sami Al-Marzoog
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2112 Pennsylvania Ave, N.W.
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team-globalfoundries-itc-cgshonly@cgsh.com

Thomas W. Yeh
CLEARY GOTTlieb STEEN & HAMILTON LLP
650 California St, Suite 2400
San Francisco, CA 94108

/s/ Nicholas Fox

Nicholas Fox
COOLEY LLP